

ADDITIONAL COW
BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1127
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3620, Arizona Revised Statutes, is amended to
3 read:

4 13-3620. Duty to report abuse, physical injury, neglect and
5 denial or deprivation of medical or surgical care
6 or nourishment of minors; medical records;
7 exception; violation; classification; definitions

8 A. Any person who reasonably believes that a minor is or has been
9 the victim of physical injury, abuse, child abuse, a reportable offense or
10 neglect that appears to have been inflicted on the minor by other than
11 accidental means or that is not explained by the available medical history
12 as being accidental in nature or who reasonably believes there has been a
13 denial or deprivation of necessary medical treatment or surgical care or
14 nourishment with the intent to cause or allow the death of an infant who
15 is protected under section 36-2281 shall immediately report or cause
16 reports to be made of this information to a peace officer, to the
17 department of child safety or to a tribal law enforcement or social
18 services agency for any Indian minor who resides on an Indian reservation,
19 except if the report concerns a person who does not have care, custody or
20 control of the minor, the report shall be made to a peace officer only. A
21 member of the clergy, a Christian Science practitioner or a priest who has
22 received a confidential communication or a confession in that person's
23 role as a member of the clergy, as a Christian Science practitioner or as
24 a priest in the course of the discipline enjoined by the church to which
25 the member of the clergy, the Christian Science practitioner or the priest
26 belongs may withhold reporting of the communication or confession if the
27 member of the clergy, the Christian Science practitioner or the priest
28 determines that it is reasonable and necessary within the concepts of the

1 religion. This exemption applies only to the communication or confession
2 and not to personal observations the member of the clergy, the Christian
3 Science practitioner or the priest may otherwise make of the minor. For
4 the purposes of this subsection, "person" means:

5 1. Any physician, physician's assistant, optometrist, dentist,
6 osteopathic physician, chiropractor, podiatrist, behavioral health
7 professional, nurse, psychologist, counselor or social worker who develops
8 the reasonable belief in the course of treating a patient.

9 2. Any peace officer, child welfare investigator, child safety
10 worker, member of the clergy, priest or Christian Science practitioner.

11 3. The parent, stepparent or guardian of the minor.

12 4. School personnel, including substitute teachers, domestic
13 violence victim advocates or sexual assault victim advocates who develop
14 the reasonable belief in the course of their employment.

15 5. Any other person who has responsibility for the care or
16 treatment of the minor.

17 6. Any person who is employed as the immediate or next higher level
18 supervisor to or administrator of a person who is listed in paragraph 1,
19 2, 4 or 5 of this subsection and who develops the reasonable belief in the
20 course of the supervisor's or administrator's employment, except that if
21 the supervisor or administrator reasonably believes that the report has
22 been made by a person who is required to report pursuant to paragraph 1,
23 2, 4 or 5 of this subsection, the supervisor or administrator is not
24 required to report pursuant to this paragraph.

25 7. Any member of a school district governing board or charter
26 school governing body.

27 B. A report is not required under this section either:

28 1. For conduct prescribed by sections 13-1404 and 13-1405 if the
29 conduct involves only minors who are fourteen, fifteen, sixteen or
30 seventeen years of age and there is nothing to indicate that the conduct
31 is other than consensual.

32 2. If a minor is of elementary school age, the physical injury
33 occurs accidentally in the course of typical playground activity during a
34 school day, occurs on the premises of the school that the minor attends
35 and is reported to the legal parent or guardian of the minor and the
36 school maintains a written record of the incident.

37 C. If a physician, psychologist or behavioral health professional
38 receives a statement from a person other than a parent, stepparent,
39 guardian or custodian of the minor during the course of providing sex
40 offender treatment that is not court ordered or that does not occur while
41 the offender is incarcerated in the state department of corrections or the
42 department of juvenile corrections, the physician, psychologist or
43 behavioral health professional may withhold the reporting of that
44 statement if the physician, psychologist or behavioral health professional
45 determines it is reasonable and necessary to accomplish the purposes of
46 the treatment.

1 D. Reports shall be made immediately either electronically or by
2 telephone. The reports shall contain the following information, if known:

3 1. The names and addresses of the minor and the minor's parents or
4 the person or persons having custody of the minor.

5 2. The minor's age and the nature and extent of the minor's abuse,
6 child abuse, physical injury or neglect, including any evidence of
7 previous abuse, child abuse, physical injury or neglect.

8 3. Any other information that the person believes might be helpful
9 in establishing the cause of the abuse, child abuse, physical injury or
10 neglect.

11 E. A health care professional who is regulated pursuant to title 32
12 and who, after a routine newborn physical assessment of a newborn infant's
13 health status or following notification of positive toxicology screens of
14 a newborn infant, reasonably believes that the newborn infant may be
15 affected by the presence of alcohol or a drug listed in section 13-3401
16 shall immediately report this information, or cause a report to be made,
17 to the department of child safety. For the purposes of this subsection,
18 "newborn infant" means a newborn infant who is under thirty days of age.

19 F. A PERSON WHO HAS A DUTY TO REPORT PURSUANT TO SUBSECTION A OF
20 THIS SECTION AND WHO HAS DIRECT KNOWLEDGE THAT A MINOR IS OR HAS BEEN THE
21 VICTIM OF ABUSE OR NEGLECT ~~[AS DEFINED IN SECTION 8-201]~~ SHALL IMMEDIATELY
22 REPORT THE ABUSE OR NEGLECT TO THE DEPARTMENT OF CHILD SAFETY AND MAY NOT
23 DELEGATE ANOTHER PERSON TO MAKE THE REPORT.

24 [G. SUBSECTION F OF THIS SECTION DOES NOT APPLY TO A PERSON WHO IS
25 AN EMPLOYEE OR AN AGENT OF A HEALTH CARE INSTITUTION AS DEFINED IN SECTION
26 36-401. IF A PERSON WHO HAS A DUTY TO REPORT PURSUANT TO SUBSECTION A OF
27 THIS SECTION IS AN EMPLOYEE OR AN AGENT OF A HEALTH CARE INSTITUTION, THE
28 PERSON MAY DELEGATE THE MAKING OF THE REPORT TO A DESIGNATED AGENT IF THE
29 DELEGATION IS REASONABLY REQUIRED TO ALLOW THE DELEGATING PERSON TO
30 CONTINUE PATIENT CARE OR TO COMPLY WITH APPLICABLE STANDARDS OF CARE,
31 INCLUDING OBLIGATIONS UNDER STATE OR FEDERAL LAW. THIS SECTION IS NOT
32 INTENDED TO REQUIRE MORE THAN ONE REPORT FROM AN EMPLOYEE OR AN AGENT OF A
33 HEALTH CARE INSTITUTION FOR THE SAME FACTS AND CIRCUMSTANCES THAT LED TO A
34 REASONABLE BELIEF OF ABUSE OR NEGLECT.

35 ~~F.~~ [H.] Any person other than one required to report or cause
36 reports to be made under subsection A of this section who reasonably
37 believes that a minor is or has been a victim of abuse, child abuse,
38 physical injury, a reportable offense or neglect may report the
39 information to a peace officer or to the department of child safety,
40 except if the report concerns a person who does not have care, custody or
41 control of the minor, the report shall be made to a peace officer only.

42 ~~G.~~ [H.] [I.] A person who has custody or control of medical
43 records of a minor for whom a report is required or authorized under this
44 section shall make the records, or a copy of the records, available to a
45 peace officer, child welfare investigator or child safety worker
46 investigating the minor's neglect, child abuse, physical injury or abuse
47 on written request for the records signed by the peace officer, child

1 welfare investigator or child safety worker. Records disclosed pursuant
2 to this subsection are confidential and may be used only in a judicial or
3 administrative proceeding or investigation resulting from a report
4 required or authorized under this section.

5 ~~H.~~ ~~[I.]~~ ~~[J.]~~ When a report is received:

6 1. By a peace officer, the officer shall immediately notify the
7 department of child safety.

8 2. Notwithstanding any other statute, by the department ~~OF CHILD~~
9 ~~SAFETY~~, the department shall immediately notify a peace officer in the
10 appropriate jurisdiction.

11 3. By a school resource officer or school safety officer, the
12 officer shall immediately notify a law enforcement agency in the
13 appropriate jurisdiction and shall submit to the local law enforcement
14 agency all information relating to the report for the purposes of the law
15 enforcement agency investigating the reported conduct.

16 ~~I.~~ ~~[J.]~~ ~~[K.]~~ Any person who is required to receive reports
17 pursuant to subsection A of this section may take or cause to be taken
18 photographs of the minor and the vicinity involved. Forensic interviews
19 or medical examinations, or both, of the involved minor may be performed.

20 ~~J.~~ ~~[K.]~~ ~~[L.]~~ A person who furnishes a report, information or
21 records required or authorized under this section, or a person who
22 participates in a judicial or administrative proceeding or investigation
23 resulting from a report, information or records required or authorized
24 under this section, is immune from any civil or criminal liability by
25 reason of that action unless the person acted with malice or unless the
26 person has been charged with or is suspected of abusing or neglecting the
27 child or children in question.

28 ~~K.~~ ~~[L.]~~ ~~[M.]~~ Except for the attorney client privilege or the
29 privilege under subsection ~~L~~ ~~[M]~~ ~~[N]~~ of this section, no privilege
30 applies to any:

31 1. Civil or criminal litigation or administrative proceeding in
32 which a minor's neglect, dependency, abuse, child abuse, physical injury
33 or abandonment is an issue.

34 2. Judicial or administrative proceeding resulting from a report,
35 information or records submitted pursuant to this section.

36 3. Investigation of a minor's child abuse, physical injury, neglect
37 or abuse conducted by a peace officer or the department of child safety.

38 ~~L.~~ ~~[M.]~~ ~~[N.]~~ In any civil or criminal litigation in which a
39 child's neglect, dependency, physical injury, abuse, child abuse or
40 abandonment is an issue, a member of the clergy, a Christian Science
41 practitioner or a priest shall not, without his consent, be examined as a
42 witness concerning any confession made to him in his role as a member of
43 the clergy, a Christian Science practitioner or a priest in the course of
44 the discipline enjoined by the church to which he belongs. This
45 subsection does not discharge a member of the clergy, a Christian Science
46 practitioner or a priest from the duty to report pursuant to subsection A
47 of this section.

1 ~~M.~~ [N.] [Q.] If psychiatric records are requested pursuant to
2 subsection ~~6~~ [H] [I] of this section, the custodian of the records shall
3 notify the attending psychiatrist, who may excise from the records, before
4 they are made available:

5 1. Personal information about individuals other than the patient.

6 2. Information regarding specific diagnosis or treatment of a
7 psychiatric condition, if the attending psychiatrist certifies in writing
8 that release of the information would be detrimental to the patient's
9 health or treatment.

10 ~~N.~~ [O.] [P.] If any portion of a psychiatric record is excised
11 pursuant to subsection ~~M~~ [N] [Q] of this section, a court, on application
12 of a peace officer, child welfare investigator or child safety worker, may
13 order that the entire record or any portion of the record that contains
14 information relevant to the reported abuse, child abuse, physical injury
15 or neglect be made available to the peace officer, child welfare
16 investigator or child safety worker investigating the abuse, child abuse,
17 physical injury or neglect.

18 ~~O.~~ [P.] [Q.] A student who is identified as a potential victim of
19 a reportable offense may be interviewed only as provided by the local
20 county protocol that is adopted pursuant to section 8-817. This
21 subsection does not prevent a school resource officer or a school safety
22 officer from either:

23 1. Receiving a voluntary report of a reportable offense from a
24 student who is an alleged victim.

25 2. Asking a student minimal follow-up questions that are necessary
26 and authorized by the county protocol.

27 ~~P.~~ [O.] [R.] A report to a school resource officer or a school
28 safety officer does not satisfy the reporting requirement prescribed by
29 this section.

30 ~~O.~~ [R.] [S.] A person who violates this section is guilty of a
31 class 1 misdemeanor, except if the failure to report involves a reportable
32 offense, the person is guilty of a class 6 felony.

33 ~~R.~~ [S.] [I.] For the purposes of this section:

34 1. "Abuse" has the same meaning prescribed in section 8-201.

35 2. "Child abuse" means child abuse pursuant to section 13-3623.

36 3. "Neglect" has the same meaning prescribed in section 8-201.

37 4. "Reportable offense" means any of the following:

38 (a) Any offense listed in chapters 14 and 35.1 of this title or
39 section 13-3506.

40 (b) Surreptitious photographing, videotaping, filming or digitally
41 recording or viewing a minor pursuant to section 13-3019.

42 (c) Child sex trafficking pursuant to section 13-3212.

43 (d) Incest pursuant to section 13-3608.

44 (e) Unlawful mutilation pursuant to section 13-1214.

45 5. "School safety officer" has the same meaning prescribed in
46 section 15-514.

1 6. "Student" means a student who is enrolled in a kindergarten
2 program or any of grades one through twelve.

3 <<Sec. 2. Section 15-514, Arizona Revised Statutes, is amended to
4 read:

5 15-514. Immoral or unprofessional conduct; duty to report;
6 immunity; definitions

7 A. Any certificated personnel, a noncertificated person or a member
8 of a school district governing board or charter school governing body who
9 reasonably suspects or receives a reasonable allegation that a public
10 school employee, including employment through a third-party contractor,
11 has engaged in conduct involving minors that would be subject to the
12 reporting requirements of section 13-3620 shall immediately report or
13 cause reports to be made to a local law enforcement agency. If the
14 employee who is the subject of the suspicion or allegation is certificated
15 by the state board of education or is a noncertificated person, the person
16 shall also report the suspicion or allegation to the state board of
17 education in writing as soon as is reasonably practicable but not later
18 than three business days after the person first suspects or receives an
19 allegation of the conduct. A report to a school resource officer or a
20 school safety officer does not satisfy the reporting requirement
21 prescribed by this subsection. [A LAW ENFORCEMENT INVESTIGATION INTO THE
22 ALLEGED CONDUCT PURSUANT TO THIS SECTION MAY NOT BE SUPERVISED, MANAGED OR
23 DIRECTED BY A SCHOOL RESOURCE OFFICER OR SCHOOL SAFETY OFFICER.]

24 B. The superintendent of a school district or the chief
25 administrator of a charter school who reasonably suspects or receives a
26 reasonable allegation that an act of immoral or unprofessional conduct
27 that would constitute grounds for dismissal or criminal charges by a
28 certificated or noncertificated person has occurred shall report the
29 conduct to the state board of education.

30 C. A person who in good faith reports or provides information
31 pursuant to this section regarding the immoral or unprofessional conduct
32 of a certificated or noncertificated person is not subject to an action
33 for civil damages as a result.

34 D. A governing board or school or school district employee who has
35 control over personnel decisions shall not take unlawful reprisal against
36 an employee because the employee reports in good faith information as
37 required by this section. For the purposes of this subsection, "unlawful
38 reprisal" means an action that is taken by a governing board or school or
39 school district employee who has control over personnel decisions as a
40 direct result of a lawful report pursuant to this section and, with
41 respect to the reporting employee, results in one or more of the
42 following:

- 43 1. Disciplinary action.
- 44 2. Transfer or reassignment.
- 45 3. Suspension, demotion or dismissal.
- 46 4. An unfavorable performance evaluation.

1 5. Other significant changes in duties or responsibilities that are
2 inconsistent with the employee's salary or employment classification.

3 E. Failure to report information as required by this section by a
4 certificated or noncertificated person constitutes grounds for
5 disciplinary action by the state board of education.

6 F. A governing board or school district employee who has control
7 over personnel decisions and who reasonably suspects or receives a
8 reasonable allegation that a person certificated by the state board of
9 education or a noncertificated person has engaged in conduct involving
10 minors that would be subject to the reporting requirements of section
11 13-3620 and this article shall not accept the resignation of the
12 certificate holder or noncertificated person until these suspicions or
13 allegations have been reported to the state board of education.

14 G. If the conduct that is the subject of the suspicions or
15 allegations reported pursuant to this section is a reportable offense, any
16 investigation related to the suspicions, allegations or report is subject
17 to the following:

18 1. If a school resource officer, school safety officer or school
19 administrator receives a report regarding suspicions or allegations of a
20 reportable offense, the school resource officer, school safety officer or
21 school administrator shall submit to a local law enforcement agency all
22 information relating to the report for the purposes of the local law
23 enforcement agency investigating the reported conduct.

24 2. A student who is identified as a potential victim of the alleged
25 conduct may be interviewed only as provided by the local county protocol
26 that is adopted pursuant to section 8-817. This paragraph does not
27 prevent a school employee, school resource officer or school safety
28 officer from receiving a voluntary report from a student who is an alleged
29 victim that a school employee committed a reportable offense.

30 H. For the purposes of this section:

31 1. "Noncertificated person" has the same meaning prescribed in
32 section 15-505.

33 2. "Reportable offense" has the same meaning prescribed in section
34 13-3620.

35 3. "School safety officer" means a peace officer who is working in
36 an off-duty capacity at a school.>>

37 Enroll and engross to conform

38 Amend title to conform

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C: JV

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